the hunger strike alone, it was ‘the bomb, the bullet, the chant, the hunger strike, the kissing of the hangman’s noose that did the demonstrative work’[11] for him and his comrades. The HSRA, he argues, was instrumental in this because of its ‘conception of a militant life’ so that ‘the HSRA in their actions sought to signal an existing wrong of an emergent possibility, whatever the risk to themselves’.[12]

The trial of the accused, however, was by the governor-general’s own legislative enactment in the form of an ordinance and that too is noteworthy because it is all too often overlooked. The significance of government by ordinance continues in India to this day. In his path-breaking study, Shubhankar Dam ruefully observes how ‘Although constitutionally limited to circumstances when it is necessary to take immediate action, ordinances, in practice, have an expansive presence in India’s parliamentary annals.’ So much so that far from being a constitutional exception they are a constitutional norm of governance, so that, ‘[a]fter six decades, they are neither exceptional nor limited. Rather, they are a convenient and – distressingly at times – the *preferred* legislative method’.[13] Ordinances are now passed in India to circumvent parliamentary scrutiny. As such they can have no equivalence with legislative enactments which have the Parliament’s democratic imprimatur. ‘Ordinances’ were used during colonial times. Under the Indian Councils Act 1861, the power of making laws and regulations was vested in the ‘Governor General in Council’[14] and although ‘the Council became British India’s primary legislative body’, in certain circumstances the 1861 Act ‘vested original legislative power on the governor-general, independent of the Council’, in the words of Shubhankar Dam.[15]

This is because the 1861 act also contained a provision to the effect that, ‘Notwithstanding anything in this Act contained, it shall be lawful for the Governor-General, in cases of emergency, to make and promulgate, from time to time, ordinance for the peace and good government of the said territories . . .’. When this is done, then ‘every such ordinance shall have life force of law or regulation made by the Governor-General in Council’. However, this is to be ‘for the space of not more than six months from its